

2025/

25-00-0102/001-FF

A.I.S.B.L. - CONSTITUTION  
"OWASP Foundation  
\*\*/\*\*/2025

**CONSTITUTION ASSOCIATION INTERNATIONALE SANS BUT LUCRATIF ("A.I.S.B.L.")**  
**"OWASP Foundation**  
-----

**THE YEAR TWO THOUSAND AND TWENTY FIVE**

The \*\*\*

Before Us, Maître **Aline HUGE**, notary at the residence of Liège (2nd canton).

**HAVE COMPARED**

- Mr. HOVSEPYAN Aram, \*\*\*.

Hereinafter referred to together as the "comparants", "founding members" or "effective members".

CAPACITY

Each of the parties declares that they are capable and competent to perform the legal acts set out in this deed and that they are not subject to any measure that could lead to incapacity in this regard, such as bankruptcy, collective debt settlement, the appointment of an administrator or other.

REPRESENTATION

The respondents are represented here by Mr. HOVSEPYAN Aram, residing at 3001 Heverlee, Celestijnenlaan, 4 as shown by the private power of attorney appended hereto.

We have been requested by the parties to authenticate the following:

CONSTITUTION

The parties have declared that they have formed an international non-profit association (A.I.S.B.L.), whose articles of association have been drawn up as follows, it being understood that legal personality will only be granted after authorization by His Majesty the King in accordance with article 10:1 of the Code of Companies and Associations

ARTICLES OF ASSOCIATION

The parties then declared that they had drawn up the association's articles of association as follows.

TITLE I: FORM - NAME - REGISTERED OFFICE - DURATION

**Article 1 - Form**

An Association in the form of an Association Internationale Sans But Lucratif, abbreviated to "A.I.S.B.L.", hereinafter referred to as the "Association", is hereby

formed, governed by the provisions of the Code des Sociétés et des Associations of March 23, 2019, published in the Moniteur belge of April 4, 2019, hereinafter the "C.S.A.", and more particularly the provisions relating to international non-profit associations.

#### **Article 2 - Name**

The Association takes the name "OWASP Foundation"

#### **Article 3 - Duration**

The Association is established for an unlimited period.

#### **Article 4 - Registered office**

The head office is located in Belgium, in the Brussels-Capital Region.

It may be transferred to any other location in Belgium, provided that such transfer does not require any change in the language of these Articles of Association, by decision of the Board of Directors, published within one month of the decision in the Annexes to the Moniteur belge.

If, following the transfer of the registered office, the language of the Articles of Association needs to be changed, only the Annual General Meeting can take this decision, in compliance with the requirements for amending the Articles of Association.

#### **Article 5 - Identification**

All deeds, invoices, announcements, notices, publications, letters, orders, websites and other documents, whether or not in electronic form, issued by the Association, must include the following information:

- The name of the Association, immediately preceded or followed by the words "association internationale sans but lucratif" or by the abbreviation "A.I.S.B.L.";
- Legal form ;
- The full address of its registered office;
- His company number ;
- Mention of the register of legal entities or the abbreviation "R.P.M." and the competent court;
- If applicable, the Association's e-mail address and website;
- If applicable, the fact that the Association is in liquidation.

### **TITLE II: OBJECTIVES**

#### **Article 6 - Purpose and object**

The Association's purpose and disinterested object is to improve the state of software security within the European Union.

Any change to the association's purpose and/or activities must be approved by the King.

#### **Article 7 - Activities**

In pursuit of these aims, the Association's activities will include :

- Support the implementation of high-impact projects ;

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- Develop and nurture communities through congresses, conferences and meetings around the world;
- Provide publications and educational resources;
- Raising funds and subsidies from the European Union;
- Fund projects, chapters and other local activities;
- Demonstrate philanthropy through scholarships and awards.

The Association may carry out any civil, movable or immovable operation directly or indirectly related, in whole or in part, to its disinterested purpose, or which may lead to its development or facilitate its realization, including and/or managing and/or participating in any service or institution aimed at directly or indirectly achieving the purpose it has set itself.

In general, the Association may undertake all actions that are directly or indirectly related to its disinterested purpose.

In so doing, the Association may engage in economic activities of a commercial nature, even of a principal nature, the proceeds of which will be entirely destined to the realization of its disinterested purpose.

It may not, however, distribute or procure directly or indirectly any pecuniary benefit whatsoever to its founders, members, directors or any other person, except for the disinterested purposes set out in the Articles of Association.

### **TITLE III: ASSOCIATION MEMBERS**

#### **Article 8 -**

Members of the Association are \*\*\*.

#### **Article 9 - Membership categories**

Having been accepted by the Association in accordance with Article 9, Members are assigned to one of the following categories, to which different rights and obligations are attached:

- The category of **Founding** Members, reserved for those appearing in this deed ;
- The category of **Full** Members, whose first members are the Founding Members ;
- The category of **Adherent** Members, who are third parties with a link to the association (working members).

#### **Article 10 - Members' rights and obligations**

##### **i-. Founding Members**

Founding Members undertake to :

- Pay the annual subscription specifically determined by the General Meeting, it being understood that the latter amount may not be less than the basic amount paid by Associate Members.
- Subscribe to the Association's selfless aims and respect its fundamental values.

In return, Founder Members may :

- Attend General Meeting meetings and take part in voting ;

- Be candidate members of the Board of Directors, from whom the Chairman of the Board of Directors will be chosen;
- Participate in achieving the Association's corporate purpose.

#### **ii-. Full Members**

Full Members undertake to :

- Pay the annual subscription specifically determined by the General Meeting, it being understood that the latter amount may not be less than the basic amount paid by Associate Members.
- Subscribe to the Association's selfless aims and respect its fundamental values.

In return, full members may :

- Attend General Meeting meetings and take part in voting ;
- To be candidate members of the Board of Directors, from whom the Chairman of the Board of Directors will be chosen;
- Participate in achieving the Association's corporate purpose.

#### **iii-. Associate Members**

Adherent Members undertake to :

- Pay the annual membership fee specifically determined by the General Meeting.
- Subscribe to the Association's selfless aims and respect its fundamental values.

In return, Adherent Members may :

- Participate in General Meeting meetings without voting ;
- Participate in achieving the Association's corporate purpose.

### **Article 11 - Admission**

#### **i-. Admission of Founding Members**

Any member who has participated in the founding of the Association is automatically admitted as a founding member, without the need for a decision by the General Meeting, except for the setting of their annual subscription.

#### **ii-. Admission of Full or Associate Members**

The admission of new Full or Associate Members is decided by the Annual General Meeting, if necessary on the recommendation of the Board of Directors, which also recommends the amount of the annual membership fee, within the limits set out in Article 9.

Applications from Full or Associate Members must be sent in writing to the Chairman of the Board, indicating the category the applicant wishes to join. The Chairman is responsible for submitting them to the General Meeting, together with the Board's recommendations as to whether or not the candidate should be admitted.

The General Meeting will decide on the acceptance of the candidate as a member belonging to the desired category at its first meeting following their communication by the Governing Body, according to the forms provided for in the present article

and by a simple majority of the votes cast by the Founding Members as provided for in the present Articles of Association. The General Meeting may decide in its sole discretion not to accept a candidate as a Full or Associate Member.

Once the decision has been adopted by the General Meeting, the Chairman of the Board informs the candidates.

No appeal is possible against this decision.

#### **Article 12 - Termination of membership**

Membership ceases automatically in the event of dissolution, resignation or exclusion.

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##### **i-. Dissolution**

In the event of dissolution of the Association, the Member automatically loses his membership.

##### **ii-. Resignation**

Any Member may resign from the Association by giving notice by registered mail with acknowledgement of receipt to the Board of Directors.

If notice is given before June 1, the resignation will take effect at the end of the current financial year, otherwise at the end of the following year

##### **iii-. Exclusion**

Any Member may be excluded from the Association in the following cases, by a unanimous decision of the General Meeting:

- If he/she engages in activities that may harm the Association or violate the rules set by the Board of Directors;
- If he has substantially breached his membership obligations;
- If the member's dues are not paid in full within 90 days of the last request for payment, made by the Chairman by registered letter with acknowledgement of receipt. From the start of the aforementioned 90-day period, and until full payment has been made, the right to participate in the work of the Association will be suspended.

The exclusion of a member must be indicated in the notice of meeting, at least one month before the General Meeting.

The Member concerned by the exclusion must be heard. He/she does not take part in the vote and is not counted in the quorum required for the decision to be validly taken.

Exclusion takes effect on the date specified in the decision, notified to the Member by registered letter with acknowledgement of receipt by the Chairman.

Renewal of the membership of an excluded Member is possible under the conditions set out in Article 11 of these Articles of Association.

##### **iv-. Impact of termination of membership on membership fees**

Any Member leaving the Association by resignation or exclusion will remain liable for payment of the membership fee due for the financial year during which his resignation is notified to the Board or during which his exclusion is decided.

#### **TITLE IV: CORPORATE BODIES**

The Association is composed of :

- From the General Meeting ;
- From the Board of Directors ;
- The delegate for day-to-day management, whose role is performed by an administrator;
- Associate members.

#### **Article 13 - Annual General Meeting**

##### **i-. Composition**

The General Meeting is made up of Founder and Full Members. Associate Members may attend the General Meeting without voting rights. The General Meeting is chaired by the Chairman of the Board of Directors. If the Chairman is absent or unable to attend, the General Meeting is chaired by the oldest member of the Board present.

##### **ii-. Skills**

The General Meeting is the sovereign body of the Association. It has the following powers:

- Appoint and dismiss members of the Board of Directors on the recommendation of the Founding and Full Members and, where applicable, set their remuneration;
- Set membership fees on the recommendation of the Board of Directors;
- Approve the association's audited annual accounts and budget, as proposed by the Board of Directors;
- To grant discharge to the members of the Board of Directors and to the Managing Director(s) for the performance of their duties;
- Amend the bylaws;
- Decide on the dissolution or liquidation of the Association and the allocation of any assets remaining after payment of all debts;
- Decide on the constitution of a reserve fund and the amount and frequency of contributions to be made by Founder, Full and or Associate Members;
- Decide on the appointment and remuneration of the statutory auditor;
- Decide on the appointment and term of office of an independent external auditor, who is not a statutory auditor;
- Decide in all other cases where required by law or the Articles of Association.

##### **iii-. Ordinary General Meeting**

The Ordinary General Meeting is convened by the Chairman at least **once a year, before the end of June**. The appointment and dismissal of members of the Board of Directors, as well as approval of the accounts and budget, are automatically placed on the agenda of the Ordinary General Meeting. Where applicable, the admission of candidate members is also placed on the agenda.

Invitations to the Annual General Meeting will be sent at least 30 days in advance to all Founding Members, Full Members, Directors and Statutory Auditors by e-mail and/or ordinary mail, to the last postal and/or e-mail address that the Member, Director and Statutory Auditor

will have communicated to the Chairman.

Notices of meeting shall specify the draft agenda drawn up by the Board of Directors, the date and venue of the meeting, and shall be accompanied by all relevant documents.

Any item proposed by at least one Founder or Full Member at least ten days before the Annual General Meeting will be included on the agenda.

Items proposed after this deadline will not be included on the agenda, unless the Board of Directors so decides by a simple majority of votes cast.

Items not on the agenda may only be considered if unanimously approved by all Full Members present or represented.

Each member of the General Meeting may be represented by another member.

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#### **iv-. Extraordinary General Meeting**

At the written request of two members of the Board of Directors, the Chairman will convene an extraordinary meeting of the General Meeting. Notice of such a meeting must be given at least ten (10) calendar days in advance. A provisional agenda and related documents will accompany the convening letter, which will set the date and venue of the meeting.

The notice of meeting will be sent by e-mail and/or ordinary mail to the last postal and/or e-mail address that the Member, the Administrator and the Statutory Auditor have communicated to the Chairman.

Each General Meeting Member may be represented by another Member. Each General Meeting Member may represent only one other Member.

#### **v-. Decision-making process**

The General Meeting is valid only if **two-thirds** of its Members are present or represented by proxy, and resolutions are passed by a **simple majority** of all Members present or represented.

An amendment to the bylaws may only be adopted if it receives **two-thirds** of the votes cast and in accordance with the conditions set out in article 20 of these bylaws.

However, if the amendment to the Articles of Association relates to the Association's object or disinterested purpose, or when a decision to voluntarily dissolve the Association is presented, they may only be adopted if they obtain **four-fifths** of the votes cast.

When calculating majorities, the votes of Members who abstain from voting are not taken into account.

In the event of a tie, the Chairman of the Board has the casting vote.

Voting may be by show of hands or, if requested by at least one of the members present or represented, by secret ballot.

If a quorum is not reached, a new notice of meeting is sent out and the meeting is held within a minimum of fifteen (15) days, validly deliberating regardless of the number of members present or represented.

The decisions of the Annual General Meeting are recorded in a register. Minutes are drawn up and signed by the Chairman. Members are informed of decisions by a copy of the minutes within four weeks of the meeting.

#### **vi. Organization of the General Meeting**

The Annual General Meeting must be held on the date and at the location specified by the Chairman in the notice of meeting.

Subject to the conditions laid down in the Companies and Associations Code, the Association may hold a General Meeting remotely by any means of telecommunication enabling effective and simultaneous deliberation, such as a telephone conference or videoconference. In this case, the notice of meeting sent by the Chairman contains all the information and explanations required to enable Members of the General Meeting to participate in or connect to the conference call or videoconference.

With regard to quorum and majority requirements, Members participating remotely in the General Meeting are deemed to be present at the place where the General Meeting is held. If all the Members present or represented attend the General Meeting from a distance, it will be deemed to have taken place at the Association's registered office.

The Chairman or, in his absence, the eldest director, chairs meetings of the Annual General Meeting.

## **Article 14 - Board of Directors**

### **i-. Composition**

Founder and Full Members may stand for election to the Board of Directors.

The role of Chairman is assumed by one of the Founding Members appointed by the Board of Directors.

The Board of Directors is appointed by the Annual General Meeting after nomination by the candidates. It will have **at least three members** and will comprise :

- a) the Chairman ;
- b) the director(s).

However, if the association were to be reduced to just two founding and/or full members, the administrative body could be made up of just these two members.

Directors are appointed for a renewable term of **three years**.

The position of director is unpaid. Directors may not receive compensation of any kind from the Association for their work for the Association.

Directors may be dismissed at any time, with immediate effect, by the Annual General Meeting, which takes its decision without further ado. Any member of the Board of Directors may resign by simply notifying the Chairman. A director who resigns must remain in office until such time as a replacement can reasonably be provided.

In the event of a vacancy on the Board of Directors, the Board of Directors may fill the vacancy on a provisional basis, until such time as the Annual General Meeting definitively appoints a new director.

### **ii-. Skills**

The Board of Directors has the broadest powers for the administration and management of the Association. Only those acts reserved by the present Articles of Association for the competence of the General Meeting are excluded from its competence, it being understood that the Administrative Body is nevertheless competent to carry out the instructions, injunctions and decisions which may be adopted by the General Meeting.

In particular, the Board of Directors :

- Develops the Association's strategy and policy, which is reviewed annually. The

- Board verifies the implementation of the association's vision, mission, values, ambition and strategy;
- Appoints, from among its members, the Chairman and, where applicable, the Delegate(s) for day-to-day management and, if necessary, dismisses them;
  - Decides on the use and sources of funding to carry out the Association's actions and projects. However, the Board must ensure that all current and future financial reserves generated by the Association's activities are maintained within the Association to the extent necessary to ensure the Association's continuity;
  - Approves the Association's meeting venues for the Association's annual meetings;
  - Approves the agenda for the annual meeting;
  - Proposes and submits the annual financial statements for the past year and the budgets for the current year to the Annual General Meeting for approval;
  - Draws up internal regulations;
  - Proposes new members to the Annual General Meeting and, where appropriate, the annual membership fee;
  - Prepares and coordinates any amendments to the Articles of Association for submission to the Annual General Meeting for approval;
  - Submits a management report to the Annual General Meeting on its current and planned activities, each year, and in view of the Annual General Meeting, and prior to an Extraordinary General Meeting, on matters relating to its agenda;
  - Makes recommendations to the General Meeting on the level of membership fees;
  - Decides which projects the Association is to initiate, manage and finance, as well as the appropriate budgets in this regard.
- All members of the Board of Directors undertake to act solely in the interests of the Association in all acts connected with their mission.

### iii-. Invitations

The Board of Directors will meet according to the needs of the Association, on the initiative of the Chairman, or at the request of a Director addressed to the Chairman. It will meet **at least \*\*\* times a year.**

Notice of meetings will be sent at least 15 days in advance by the Chairman by e-mail and/or ordinary post. They will specify the agenda, date and location of the meeting. The Board of Directors may hold its meetings remotely, in which case the notice of meeting shall contain the link and indicate the digital platform used, or in any case detail the manner in which this will be done, provided that this enables participation in the debate.

Each designated director may be represented by another director. A director may represent only one other director.

The Chairman or, in his absence, the oldest director, chairs the meetings of the Board of Directors.

### iv-. Voting rights

Each member of the Board of Directors has one vote. For a vote to be valid, a quorum of at least **two-thirds** of the voting members of the Board of Directors must be present.

Decisions will be taken by a **simple majority** of votes cast by members present or represented by a proxy given to another member of the Board of Directors, with each member being entitled to hold a maximum of two proxies.

With regard to quorum and majority requirements, directors participating remotely in the

meeting are deemed to be present at the place where the meeting is held or, if all directors participate remotely, at the Association's registered office.

In the event of a tie, the Chairman has the casting vote.

It is agreed that decisions of the Board of Directors may be taken in writing, including by electronic means, subject to the unanimous consent of its members.

Minutes are drawn up and signed by the Chairman. Directors are informed of decisions by a copy of the minutes sent within four weeks of the meeting.

#### **Article 15 - Daily management delegates**

The Board of Directors may delegate the internal day-to-day management of the Association, as well as external representation relating to this day-to-day management, to one or two directors, who will be appointed as Day-to-Day Management Delegate(s). The Board of Directors is responsible for supervising the Delegate(s) for Day-to-Day Management.

In accordance with article 9:10, para. 2 of the SHA, day-to-day management includes both acts and decisions that do not exceed the Association's day-to-day requirements, and acts and decisions which, either because of the minor interest they represent, or because of their urgent nature, do not justify the intervention of the Board of Directors.

In particular, and without limitation, the Daily Management Delegate(s) perform the following tasks:

- Implement the decisions of the Annual General Meeting and the Board of Directors;
- To manage the Association in the interests of its Members and stakeholders, in strict compliance with budgetary and internal control procedures, in accordance with the decisions of the General Meeting and the Board of Directors;
- Maintain regular contact with the President on the Association's activities and management;
- Prepare, in detail and in advance, all meetings or videoconferences of the Board of Directors;
- At the request of the Board of Directors, assists in preparing General Meeting meetings.

The appointment of the Daily Management Delegate(s), and the termination of his/her/their functions, are made public by filing in the Association's files and by publication of an extract in the Annexes to the Moniteur belge.

#### **Article 16 - Directors' responsibilities**

Directors are not personally liable for the Association's commitments.

Their liability to the Association and to third parties is limited to the performance of their duties in accordance with the provisions of common law, the law and the Articles of Association. They shall only be liable for decisions, acts or conduct which manifestly exceed the margin within which normally prudent and diligent directors (delegates) placed in the same circumstances might reasonably hold a differing opinion. Directors (delegates) are only liable for faults that can be attributed to them personally, committed in the performance of their (day-to-day) management duties. Directors (delegates) are jointly and severally liable, but are discharged from liability if they have not taken part in the misconduct and have reported the alleged misconduct to all other members of the Board of Directors. This denunciation and the discussions to which it gives rise are recorded in the minutes.

### **Article 17 - Representation of the Association**

The Board of Directors represents the Association collegially vis-à-vis third parties in all judicial and extrajudicial acts. It represents the Association through the majority of its members.

Without prejudice to the general power of representation of the Board of Directors, the Association is also duly represented:

- For all actions involving the Association relating to judicial or extra-judicial matters, all powers of attorney and proxies, all documents to which a public official, in particular a notary or a mortgage registrar, lends his or her assistance, by **two directors**, or by the **Chairman** without having to justify to third parties a prior decision by the Board of Directors ;
- Day-to-day management deeds, releases and discharges to third parties, banks, contracts and all other administrative matters relating to day-to-day management are signed by the Managing Director or one of the Managing Directors.

The Board of Directors may appoint directors, the Chairman, the Delegate(s) for day-to-day management or third parties as agents to represent the Association for the purpose of performing specific legal acts. The agents commit the Association within the limits of the power of attorney granted to them, which limits are enforceable against third parties in accordance with the legal provisions governing powers of attorney.

## **TITLE V: FINANCIAL CONTROLS AND ACCOUNTING OBLIGATIONS**

### **Article 18 - Commissioners**

If required by article 3:47, §6 of the CSA, the Annual General Meeting appoints one or more Auditors from among auditors or chartered accountants established in Belgium, for a renewable period of three years. The General Meeting also determines the annual remuneration.

The role of the Statutory Auditor includes monitoring and controlling all the Association's financial transactions, in accordance with the requirements of the Articles of Association. The Statutory Auditor may examine, without leaving the premises, the books, correspondence, minutes and, in general, all the Association's accounts, as well as the inventory of assets and liabilities, the annual accounts, any information and the budget decided by the Board of Directors and approved by the General Meeting. If more than one Statutory Auditor is appointed, they act as a body, but may decide individually to undertake any research they deem necessary.

The Statutory Auditor reports to the Annual General Meeting on the results of his assignment.

The Statutory Auditor is under no personal obligation in respect of the Association's financial commitments. The Commissioner is only liable for the execution of his mandate.

### **Article 19 - Accounting obligations**

The financial year begins **on January 1 and ends on December 31 of each year**. However, the first financial year will begin on the date of the Royal Decree conferring legal personality on the Association and will end **on December 31, 2026**.

The accounts are kept in accordance with the provisions of article 3:47 of the CSA and the Royal Decree of April 29, 2009, as well as all other applicable industry regulations.

The Board of Directors submits the annual accounts for the previous financial year to the

Annual General Meeting for approval. The Board of Directors and the Statutory Auditor also submit a report on their activities relating to the Association's financial management.

The Association's annual accounts are filed in accordance with the provisions of article 3:47 §7 of the CSA and the Royal Decree of April 29, 2019.

## **TITLE VI: MISCELLANEOUS**

### **Article 20 - Amendments to the Articles of Association**

The Articles of Association may only be amended by a decision of the Annual General Meeting taken at a meeting specially convened at least three months in advance.

Without prejudice to their recording in a register, only the modification of the following elements must be established by authenticated deed:

- The powers, convening and decision-making procedures of the Association's General Meeting;
- Conditions for amending the bylaws ;
- The conditions of dissolution and liquidation of the Association and the disinterested purpose to which the Association must allocate its assets in the event of dissolution.

Amendments to the Articles of Association concerning the precise description of the Association's disinterested purpose and the activities that constitute its object, must be approved by Royal Decree.

### **Article 21 - Dissolution**

The General Meeting will be convened to consider proposals for dissolution submitted by the Board of Directors or by at least two of the Founding Members making up the General Meeting. The notice of meeting and the agenda will be drawn up in accordance with the provisions governing Extraordinary General Meetings.

In the event of dissolution of the Association by the General Meeting, the latter will also set the terms of liquidation, appoint one or more liquidators to sell the Association's assets, determine their powers and remuneration, and allocate the proceeds of liquidation after settlement of any liabilities. Available assets, after settlement of liabilities, will be vested in a non-profit organization pursuing an object similar to that of the Association. Under no circumstances may the proceeds of the liquidation be distributed among the Members, bodies or representatives of the Association.

### **Article 22 - Digital signature**

The signing of agreements, powers of attorney, letters of waiver, minutes and all other documents may, within the limits of Book 8 of the Civil Code, also be carried out electronically.

### **Article 23 - Application of the Companies and Associations Code**

Anything not provided for in the Articles of Association is governed by the provisions of the Companies and Associations Code of March 23, 2019.

### **Article 24 - Official language of the articles of association**

The French text of these Articles of Association is to be regarded as the only official text. Translations are possible for the internal use of the Association.

### **Article 25 - Election of domicile**

For the application of these Articles of Association, any member, director, commissioner or liquidator residing abroad shall elect domicile at the registered office, where all communications, reminders, summonses and notifications may be validly served on him/her if he/she has chosen no other place of residence in Belgium for all relations with the Association.

### **Article 26 - Jurisdiction**

Any dispute concerning the affairs of the Association and the execution of these Articles of Association, between the Association, its members, directors, commissioners and liquidators, shall be subject to the exclusive jurisdiction of the court in whose jurisdiction the registered office of the Association is located, unless the Association expressly waives such jurisdiction.

## **FINAL AND TRANSITIONAL PROVISIONS**

The participants unanimously take the following decisions, which will only become effective once a copy of the deed of incorporation has been filed with the clerk's office in accordance with the law.

### **1. First financial year and first general meeting**

The first financial year :

- begins on the date of the Royal Decree conferring legal personality on the Association; and
- ends on December 31 2026.

The first Annual General Meeting is held on \*\*\*

### **2. Head office address**

The head office address is \*\*\*

### **3. Appointment of Board members**

The Annual General Meeting resolves to set the number of directors at three.

The Board of Directors is composed as follows:

The following are elected to the Board of Directors:

1-. Mr BAELE Maxim Maria Jacques, \*\*\*.

2-. Mr HOVSEPYAN Aram, \*\*\*.

3-. Mr VAN DER STOCK Andrew, \*\*\*

Here present and accepting.

Their mandate is exercised free of charge.

The Board of Directors thus appointed appoints as Chairman: \*\*\*, given name, who accepts.

### **4 . Day-to-day management delegate(s)**

The General Meeting resolves to appoint Mr Andrew VAN DER STOCK, first name, present and accepting, as delegate for day-to-day management.

### **5. Commissioner**

No Commissioner is appointed, as the association is not required to do so by law.

### **6. Assumption of commitments made on behalf of the association in formation**

All commitments and obligations resulting therefrom, and all activities undertaken since April 1<sup>st</sup> 2025 by either of the parties in the name and on behalf of the association in formation, are taken over by the association as presently constituted,

by decision of the governing body, which will take effect as of the acquisition by the association of its legal personality.

**7. Costs and declarations of the parties.**

The writing fee is one hundred euros (€100.00) .

The parties declare that they are aware that all costs, remunerations and charges payable by the association for its formation amount to three thousand seventy-five euros (€3,075.00) including VAT.

They acknowledge that the undersigned notary has drawn their attention to the fact that the association, in the exercise of its object, may have to obtain prior authorizations or licenses or meet certain conditions, due to regulations in force concerning access to the profession.

Certificate of identity

The undersigned notary certifies that the identity of the parties has been established on the basis of the above documents.

Ventôse Law

The parties acknowledge that they have been informed by the notary of the scope of article 9, paragraph 1<sup>er</sup>, subparagraph 2, of the law on the organization of the notarial profession, which states: "*When the notary ascertains the existence of conflicting interests or disproportionate commitments, he draws the attention of the parties and advises them that each of them is free to appoint another notary or to be assisted by counsel. The notary shall mention this in the notarial deed*".

Project

The parties declare that they have taken cognizance of the draft of the present deed in sufficient time to examine it usefully.

**GIVEN.**

Done and passed at the place and on the date mentioned.

And after a reading with commentary, in full as regards the parts of the deed referred to in this respect by law, and partially as regards the other provisions, the parties have signed with us, Notary.